

Table of Statutes referred to in this Act

| Short Title                                                               | Session and Chapter    |
|---------------------------------------------------------------------------|------------------------|
| Harbours and Passing Tolls, &c., Act, 1861 ...                            | 24 & 25 Vict. c. 47.   |
| Interpretation Act, 1889 ... ..                                           | 52 & 53 Vict. c. 63.   |
| Development and Road Improvement Funds Act, 1909 ... ..                   | 9 Edw. 7. c. 47.       |
| Special Areas (Development and Improvement) Act, 1934 ... ..              | 25 & 26 Geo. 5. c. 1.  |
| Town and Country Planning Act, 1944 ... ..                                | 7 & 8 Geo. 6. c. 47.   |
| Town and Country Planning (Scotland) Act, 1945 ...                        | 8 & 9 Geo. 6. c. 33.   |
| Distribution of Industry Act, 1945 ... ..                                 | 8 & 9 Geo. 6. c. 36.   |
| Acquisition of Land (Authorisation Procedure) Act, 1946 ... ..            | 9 & 10 Geo. 6. c. 49.  |
| Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947 ... .. | 10 & 11 Geo. 6. c. 42. |
| Local Government (Scotland) Act, 1947 ... ..                              | 10 & 11 Geo. 6. c. 43. |
| Town and Country Planning Act, 1947 ... ..                                | 10 & 11 Geo. 6. c. 51. |
| Town and Country Planning (Scotland) Act, 1947 ...                        | 10 & 11 Geo. 6. c. 53. |
| Companies Act, 1948 ... ..                                                | 11 & 12 Geo. 6. c. 38. |
| Employment and Training Act, 1948 ... ..                                  | 11 & 12 Geo. 6. c. 46. |
| Distribution of Industry Act, 1950 ... ..                                 | 14 Geo. 6. c. 8.       |
| Town Development Act, 1952 ... ..                                         | 15 & 16 Geo. 6. c. 54. |
| Landlord and Tenant Act, 1954 ... ..                                      | 2 & 3 Eliz. 2. c. 56.  |
| Town and Country Planning Act, 1954 ... ..                                | 2 & 3 Eliz. 2. c. 72.  |
| Town and Country Planning (Scotland) Act, 1954 ...                        | 2 & 3 Eliz. 2. c. 73.  |
| House of Commons Disqualification Act, 1957 ...                           | 5 & 6 Eliz. 2. c. 20.  |
| Housing and Town Development (Scotland) Act, 1957 ... ..                  | 5 & 6 Eliz. 2. c. 38.  |
| Distribution of Industry (Industrial Finance) Act, 1958 ... ..            | 6 & 7 Eliz. 2. c. 41.  |

## CHAPTER 19

### *European Free Trade Association Act, 1960*

#### ARRANGEMENT OF SECTIONS

##### Section

1. Rules for determining origin and place of consignment of goods.
2. Provisions as to Convention rates of duty where drawback etc. allowable.
3. Verification of origin of exported goods.
4. Penalties for untrue documents of origin for goods exported.
5. Repeal of Dyestuffs (Import Regulation) Acts.
6. Application of Act to subsequent agreements with Convention countries.
7. Regulations and Orders.
8. Exercise of powers of Board of Trade.
9. Expenses.
10. The Convention area; and Convention area origin.
11. General interpretation.
12. Short title and extent.

An Act to make provision for matters arising out of the establishment of the European Free Trade Association or otherwise out of agreements relating to trade made with members of the Association; and to repeal the Dyestuffs (Import Regulation) Acts, 1920 and 1934.

[22nd March, 1960]

**B**E it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Board of Trade may by regulations make provision as to the cases in which, in determining eligibility for any Convention rate of duty, goods are or are not to be treated as of Convention area origin, as to the time by reference to which, in determining eligibility as aforesaid, the question whether goods are to be so treated is to be decided, and as to the evidence which is to be required or is to be sufficient for the purpose of showing that goods are or are not to be so treated. Rules for determining origin and place of consignment of goods.

(2) Subject to the provisions of any regulations under this section, where, in connection with eligibility for a Convention rate of duty, any question arises whether goods are of Convention area origin, the Commissioners may require the importer of the goods to furnish to them, in such form as they may prescribe, proof of any statement made to them as to any fact necessary to determine that question; and if such proof is not furnished to their satisfaction, the question may be determined without regard to that statement.

(3) Regulations under this section may make different provisions for different purposes and in relation to goods of different descriptions.

(4) For the avoidance of doubt it is hereby declared that regulations under this section may make provision for determining in what cases produce of the sea, or goods produced or manufactured therefrom at sea, are to be treated as of Convention area origin.

(5) Nothing in subsections (2) to (4) of section twelve of the Import Duties Act, 1958 (which contain provisions, for the purposes of that Act and other purposes, similar to the foregoing provisions of this section) or in regulations made under the said subsection (2) shall apply for the purpose of determining whether goods are eligible for a Convention rate of duty. 6 & 7 Eliz. 2. c. 6.

Provisions as to Convention rates of duty where drawback etc. allowable.

2.—(1) Notwithstanding anything in any enactment or order, goods may, in such circumstances or subject to such limitations as may be prescribed, be treated as not eligible for a Convention rate of duty on importation into the United Kingdom if—

- (a) drawback was allowable in connection with any exportation from any part of the Convention area of the goods or of articles used in the production or manufacture of the goods, and
- (b) the Commissioners are not satisfied that the drawback has not been and will not be allowed.

(2) Where on importation into the United Kingdom goods have been treated as eligible for a Convention rate of duty, and after their importation drawback allowable as aforesaid is allowed, the Commissioners may, in such circumstances as may be prescribed, recover from the importer the additional amount of duty which would have been chargeable on the importation of the goods if they had not been so treated.

(3) References in subsections (1) and (2) of this section to drawback include references to any prescribed remission or repayment of, or exemption from, duty chargeable on importation into any part of the Convention area.

(4) In this section “prescribed” means prescribed by regulations made by the Board of Trade.

Verification of origin of exported goods.

3.—(1) For the purpose of complying with any request made to the Commissioners or any other Government department, under arrangements made for the purposes of the Convention, to verify or investigate any certificate or other evidence relevant to the question whether any goods exported from, or produced or manufactured (directly or indirectly) from goods exported from, the United Kingdom are eligible in another part of the Convention area for a Convention rate of duty, the Commissioners may carry out such investigations, and may make to the government or authority making the request such report, or provide them with such information, as appear to the Commissioners requisite; and the Commissioners or an officer may require—

- (a) the exporter, or
- (b) any other person appearing to the Commissioners or officer to have been concerned with the goods, or any goods from which, directly or indirectly, they have been produced or manufactured (whether he was concerned with them as respects growth, production, manufacture or handling or in any other way), or
- (c) any other person appearing to the Commissioners or officer to have been concerned in the giving of the certificate or evidence,

to furnish such information in such form and within such time as the Commissioners or officer may specify in the requirement.

(2) Any reference in the foregoing subsection to the furnishing of information includes a reference to the production of invoices, bills of lading, and other books or documents whatsoever, and to allowing the Commissioners or officer to inspect them and to take copies thereof or extracts therefrom.

(3) Any person who without reasonable cause fails to comply with a requirement under this section shall be liable to a penalty of fifty pounds.

(4) An averment in any process in proceedings under this section that any requirement to furnish information which has been made was made for the purpose specified in subsection (1) of this section shall, until the contrary is proved, be sufficient evidence that the requirement was so made.

4. Any person who in the United Kingdom makes or signs, or causes to be made or signed, any document relating to goods exported or to be exported from the United Kingdom which is untrue in a material particular, being a document made for production in support of a claim that the goods, or any goods produced or manufactured, or to be produced or manufactured, from the goods, are eligible in any part of the Convention area for a Convention rate of duty, shall be guilty of an offence under section three hundred and one of the Customs and Excise Act, 1952 (which relates to untrue declarations in customs matters). Penalties for untrue documents of origin for goods exported.  
15 & 16 Geo. 6  
& 1 Eliz. 2.  
c. 44.

5. The Dyestuffs (Import Regulation) Acts, 1920 and 1934, are hereby repealed. Repeal of Dyestuffs (Import Regulation) Acts.

6. If it appears to Her Majesty in Council that by reason of any agreement with respect to trade made after the fourth day of January, nineteen hundred and sixty (being the date of the signing of the Convention in Stockholm) between all or any of the countries which are for the time being parties to the Convention, or between all or any of those countries and any other country, it is expedient so to do, Her Majesty may by Order in Council direct that this Act shall have effect with such adaptations or modifications of references to the Convention, the Convention area, Convention area origin or Convention rates of duty as may be specified in the Order. Application of Act to subsequent agreements with Convention countries.

7.—(1) Any power to make regulations conferred by this Act shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of the Commons House of Parliament. Regulations and Orders.

(2) Any Order in Council under the foregoing section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) Any power conferred by this Act to make an Order in Council shall include power, exercisable in the like manner and subject to the like provisions, to vary or revoke the Order.

**Exercise of  
powers of  
Board of  
Trade.**

8. Anything required or authorised by or under this Act to be done by, to or before the Board of Trade may be done by, to or before the President of the Board, any Minister of State with duties concerning the affairs of the Board, any secretary, under-secretary or assistant secretary of the Board or any person authorised in that behalf by the President.

**Expenses.**

9. The administrative expenses of any Government department under this Act shall be defrayed out of moneys provided by Parliament.

**The  
Convention  
area; and  
Convention  
area origin.**

10.—(1) For the purposes of this Act, of any other enactment relating to duties of customs, and of any instrument having effect under such an enactment, “the Convention area” means, subject to the provisions of this section, Austria, Denmark, Great Britain, Northern Ireland, the Isle of Man and the Channel Islands, Liechtenstein, Norway with Spitzbergen, Portugal with the Azores and Madeira, Sweden and Switzerland; and in this Act “Convention area origin” means, in relation to any goods, that they were grown, produced or manufactured in, and consigned from a place in, the Convention area.

(2) If Her Majesty by Order in Council declares that any country specified in the Order, and not named in subsection (1) of this section, is included in the area of the European Free Trade Association, that country shall be deemed to be named in that subsection.

(3) If Her Majesty by Order in Council declares that any country named in subsection (1) of this section has ceased to be included in the area of the European Free Trade Association, that country shall be deemed no longer to be named in that subsection.

**General  
interpretation.**

11.—(1) In this Act—

“the Commissioners” means the Commissioners of Customs and Excise;

“the Convention” means the Convention establishing the European Free Trade Association which was signed at Stockholm on the fourth day of January, nineteen hundred and sixty;

“the Convention area” and “Convention area origin” have the meanings assigned to them respectively by the foregoing section;

“Convention rate of duty” means a rate of customs duty which is applicable to goods by reason of their being of Convention area origin, and includes an exemption which is so applicable from any customs duty;

“country” includes territory;

“customs duty” includes any corresponding duty in any part of the Convention area;

“officer” means a person commissioned by the Commissioners.

(2) The expression “customs Acts” in the Customs and Excise Act, 1952, shall include all the provisions of this Act, and for the purposes of that Act all those provisions shall be deemed to relate to an assigned matter.

12.—(1) This Act may be cited as the European Free Trade Association Act, 1960. Short title and extent.

(2) It is hereby declared that this Act extends to Northern Ireland.

## CHAPTER 20

An Act to enable the Minister of Housing and Local Government to extend the period for which possession of requisitioned houses may be retained by local authorities under the Requisitioned Houses and Housing (Amendment) Act, 1955, and for purposes connected therewith. [22nd March, 1960]

**B**E it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, the Minister may by order direct that subsection (2) of section one of the Requisitioned Houses and Housing (Amendment) Act, 1955 (which authorises the retention until the thirty-first day of March, nineteen hundred and sixty of requisitioned houses of which the right to possession was vested in local authorities by that Act) shall have effect, in its application to any local authority, as if for the reference to the said thirty-first day of March there were substituted a reference to such date (not later than the end of March nineteen hundred and sixty-one) as may be specified in the order. Power to authorise retention of requisitioned houses after 31st March, 1960. 3 & 4 Eliz. 2. c. 24.

(2) An order under this section may be made so as to apply either to all requisitioned houses in the possession of the local authority under the said Act (hereafter in this Act referred to as the Act of 1955), or to all such houses subject to such exceptions (whether for particular houses or for houses of any particular class or description) as may be specified in the order, and may be varied by a subsequent order made thereunder.